

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Kastner	Team: Squad #12	CCRB Case #: 201508019	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/16/2015 5:45 AM	Location of Incident: § 87(2)(b)	Precinct: 44	18 Mo. SOL 3/16/2017	EO SOL 3/16/2017	
Date/Time CV Reported Wed, 09/16/2015 7:47 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/22/2015 1:30 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. CPT Christopher Henning	00000	925443	NARCB BX
2. SDS Michael Miller	03476	902023	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A.CPT Christopher Henning	Abuse: Cpt. Christopher Henning entered and searched § 87(2)(b), in the Bronx.	§ 87(2)(b)
B.SDS Michael Miller	Discourtesy: Sgt. Michael Miller spoke discourteously to § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
C.CPT Christopher Henning	Discourtesy: Cpt. Christopher Henning spoke discourteously to § 87(2)(b)	§ 87(2)(b)

Case Summary

On September 16, 2015, § 87(2)(b) called the IAB command center to file a complaint on behalf of himself and his mother, § 87(2)(b) which was received at the CCRB on September 22, 2015. On September 16, 2015, at approximately 5:45 A.M., Cpt. Christopher Henning, Sgt. Michael Miller, and additional officers, all from Bronx Narcotics, executed a search warrant at § 87(2)(b) in the Bronx (**Allegation A**). § 87(2)(b) and § 87(2)(b) were handcuffed and detained as the apartment was searched. During that time, Sgt. Miller allegedly told § 87(2)(b) that she and § 87(2)(b) were “fucking drug dealers” approximately three times and when § 87(2)(b) told Sgt. Miller not to speak to § 87(2)(b) that way, Sgt. Miller allegedly replied, “What the fuck you gonna do? What the fuck you gonna do?” (**Allegation B**). Sgt. Miller mentioned being inside the apartment before and when § 87(2)(b) accused him of lying, Sgt. Miller allegedly said, “Oh, look at your ass. Look at your ass. Just shut the fuck up” (**within Allegation B**). § 87(2)(b) asked Cpt. Henning for a copy of the search warrant and Cpt. Henning allegedly replied, “I ain’t gotta leave shit. You watch too much fucking TV. That’s your fucking problem. I ain’t gotta leave shit” (**Allegation C**), although he then provided the requested document. After the search of the apartment yielded negative results, § 87(2)(b) and § 87(2)(b) were released. No arrests or summonses resulted from this incident.

There is no video evidence in this case and § 87(2)(b) was uncooperative with the investigation.

This case was delayed due to Bronx Narcotics’ initial refusal to provide the NYPD documents relevant to this case until the conclusion of their investigation.

Mediation, Civil and Criminal Histories

- This case was not mediation eligible due to § 87(2)(b) s pending IAB investigation. § 87(2)(g) [REDACTED].
- As of November 30, 2015, neither § 87(2)(b) nor § 87(2)(b) have filed Notices of Claim with the City of New York regarding this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED].

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) although he is listed as a victim in one prior complaint filed by § 87(2)(b) (Board Review 04).
- This is the fourth CCRB complaint in which § 87(2)(b) is a participant (Board Review 05). § 87(2)(b) [REDACTED].
- Cpt. Henning, a 15 year member-of-the-service, has one prior CCRB complaint with one allegation pled to him, which was not substantiated.
- Sgt. Miller, who was a member of service for 23 years, has three prior CCRB complaints containing seven allegations pled to him, one of which was substantiated. In CCRB case number 200605835, the Board recommended that Sgt. Miller receive charges for refusing to process a civilian complaint, but the NYPD took no disciplinary action.

Explanation of Subject Officer Identification

- Allegation A –Abuse of Authority: Cpt. Christopher Henning entered and searched** § 87(2)
[REDACTED] **in the Bronx.**

§ 87(2)(g)

As detailed above in the Case Summary section, § 87(2)(b) (Board Review 11) alleged that two officers, identified via investigation as Sgt. Miller and Cpt. Henning, spoke discourteously during this incident. § 87(2)(b) the only additional civilian present, refused to participate in this investigation. Cpt. Henning (Board Review 12) acknowledged interacting with § 87(2)(b) but denied using profanity and denied hearing any officer do so. The Department Advocate's Office confirmed that Sgt. Miller resigned from service as of December 1, 2015 (Board Review 13), thereby making him unavailable to the investigation.

§ 87(2)(g)

Squad: #12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date